24CHCV03232 24CHCV03232

County: los-angeles

Division: Civil Law and Motion

Department: F49

Hearing date: 2026-07-28

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Case Number: 24CHCV03232 Hearing Date: July 28, 2026 Dept: F49

Dept. F49

Date: 7/28/26

Case Name: Shawn Sanderfer vs. Equity Lifestyle

Properties, Inc.; Thousand Trails Management Services, Inc.; MHC Property

Management, L.P.; MHC TT, L.P.; and Does 1-25

Case No. 24CHCV03232

LOS ANGELES SUPERIOR COURT

NORTH VALLEY DISTRICT

DEPARTMENT F49

JULY 28, 2026

MOTION TO COMPEL FURTHER

RESPONSES TO SPECIAL INTERROGATORIES; REQUEST FOR SANCTIONS

Los Angeles Superior

Court Case No. 24CHCV03232

Motions filed: 9/25/25

MOVING PARTY: Plaintiff Shawn Sanderfer

RESPONDING PARTY: Defendant Equity Lifestyle Properties, Inc.

NOTICE: OK

RELIEF REQUESTED: An order from this Court compelling Defendant Equity Lifestyle Properties, Inc. to provide further responses to Plaintiff's Special Interrogatories, Set One, Nos. 3-8, 20-21, and 25; and awarding sanctions in the amount of $3,000.00.

TENTATIVE RULING: The Motion is GRANTED IN PART. The request for sanctions is GRANTED IN PART.

BACKGROUND

This action arises from personal injuries Plaintiff Shawn Sanderfer ("Plaintiff") sustained on September 10, 2022, allegedly due to a dangerous condition at Defendants' Thousand Trails Soledad Canyon RV resort (the "Soledad Canyon Property").

On September 9, 2024, Plaintiff filed a Complaint against Defendants Equity Lifestyle Properties, Inc. ("Equity Lifestyle"), Thousand Trails Management Services, Inc. ("TTMSI"), MHC Property Management, L.P. ("MHC Property"), MHC TT, L.P. ("MHC TT") (collectively, "Defendants"), and Does 1 through 25, alleging four causes of action: (1) negligence, (2) premises liability, (3) intentional infliction of emotional distress, and (4) negligent infliction of emotional distress. On November 22, 2024, Defendants filed their joint Answer to the Complaint.

On September 25, 2025, Plaintiff filed the instant Motion to Compel Further Responses to Special Interrogatories, Set One (the "Motion").

On July 15, 2026, Equity Lifestyle filed an Opposition.

On July 21, 2026, Plaintiff filed a Reply.

ANALYSIS

"On receipt of a response to interrogatories, the propounding party may move for an order compelling a further response if the propounding party deems that any of the following apply: (1) An answer to a particular interrogatory is evasive or incomplete. (2) An exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate. (3) An objection to an interrogatory is without merit or too general." (Code Civ. Proc., § 2030.300, subd. (a).)

A. Procedural Requirements

(1) Meet and Confer

A motion to compel further responses to interrogatories must be accompanied by a meet and confer declaration under Section 2016.040. (Code Civ. Proc., § 2030.300, subd. (b)(1).) A meet and confer declaration must "state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion." (Code Civ. Proc., § 2016.040.)

Plaintiff's counsel, Russell J. Miller ("Miller"), attests that he sent Defendants' counsel a detailed meet-and-confer letter on July 15, 2025, identifying a number of deficiencies in responses to Plaintiff's discovery requests. (Miller Decl., ¶ 10.) The letter demanded supplemental responses by July 25, 2025. (Ibid.) Defendants' counsel responded on July 21, 2025, requesting an extension of time to provide supplemental responses. (Id., ¶ 11.) The parties agreed to extend both the time for supplementation and the deadline for filing a motion to compel. (Ibid.) After continued exchange, Defendants supplemented some but not all of the responses identified by Miller as deficient. (Id., ¶¶ 14-15.) The parties then conferred extensively regarding the responses that remained deficient and agreed to further extend the motion-to-compel deadline to September 25, 2025. (Id., ¶¶ 16-17.) On August 29, 2025, Defendants served further supplemental responses, but did not supplement responses to the requests at issue in the Motion. (Id., ¶ 19.)

The Court finds Plaintiff's meet-and-confer effort to be satisfactory.

(2)
Separate Statement

“Any motion involving the content of a discovery request or the responses to such a request must be accompanied by a separate statement. The motions that require a separate statement include a motion … (2) To compel further responses to interrogatories.” (Cal. Rules of Court, Rule 3.1345, subd. (a).) The separate statement must “provide[] all information necessary to understand … all the responses … that are at issue” and “be full and complete so that no person is required to review any other document in order to determine the full request and the full response.” (Id., Rule 3.1345, subd. (c).)

Plaintiff has filed a separate statement concurrently with the Motion, identifying each request at issue, stating the text of the interrogatory and response, and providing a basis for compelling further response. (See generally, Plaintiff’s Separate Statement (“Pl. SS”).)

The Court finds that Plaintiff has complied with the requirements of California Rules of Court, rule 3.1345.)

B.
Motion to Compel Further Responses to Special Interrogatories, Set One

“Each answer in a response to interrogatories shall be as complete and straightforward as the information reasonably available to the responding party permits.” (Code Civ. Proc., § 2030.220, subd. (a).) “If an interrogatory cannot be answered completely, it shall be answered to the extent possible.” (Code Civ. Proc., § 2030.220, subd. (b).) “If the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state, but shall make a reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations, except where the information is equally available to the propounding party.” (Code Civ. Proc., § 2030.220, subd. (c).)

“As a general matter, the statutory scheme imposes no obligation on a party propounding interrogatories to establish good cause or prove up the merits of any underlying claims." (Williams v. Superior Court (2017) 3 Cal.5th 531, 550.) A litigant "is entitled to demand answers to its interrogatories, as a matter of right, and without a prior showing, unless the party on whom those interrogatories are served objects and shows cause why the questions are not within the purview of the code section." (Id., at p. 541, citing West Pico Furniture Co. v. Superior Court (1961) 56 Cal.2d 407, 422.)

Equity Lifestyle served initial responses to Plaintiff's Special Interrogatories, Set One on June 18, 2025. (Miller Decl., ¶ 9.) After meeting and conferring regarding the responses, Equity Lifestyle served supplemental responses on August 20, 2025 and further supplemental responses on August 29, 2025, but never supplemented the responses presently at issue. (Id., ¶¶ 14-19.) Plaintiff contends that the responses to Special Interrogatory Nos. 3-8, 20-21, and 25 are evasive and incomplete. (Mot., at p. 3.)

(1)
Special Interrogatories, Set One, Nos. 3-8

Special Interrogatories Nos. 3 through 8 ask Equity Lifestyle to "DESCRIBE IN DETAIL any RELATIONSHIP" between Equity Lifesyle and: (1) MHC Property (Nos. 3-4), (2) MHC TT (Nos. 5-6), and (3) TTMSI (Nos. 7-8), both generally and as the relationships relate to the Soledad Canyon Property. (Pl. SS, at pp. 1-3.)

(a)
Responses to Special Interrogatory Nos. 3-8

Equity Lifestyle's responses to Special Interrogatory Nos. 3-8 make the following general objection to each of these interrogatories: "Objection, the interrogatory is vague and ambiguous with respect to the term[] 'relationship.'" (Miller Decl., Exh. 3, at pp. 4-5.)

Equity Lifestyle also provides the following responsive information:

Response to Special Interrogatory No. 3:
"Equity Lifestyle, inc. is a self-administered REIT that does not own or

operate the property where the subject incident took place. MHC Property Management, L.P. is the entity that manages the property where the subject incident took place. MHC Property Management, L.P., is an indirect, wholly owned subsidiary of EQUITY LIFESTYLE PROPERTIES, INC. ("ELP")." (Miller Decl., Exh. 3, at p. 4.)

Response to Special Interrogatory No. 4:
"MHC Property Management, L.P., is an indirect, wholly owned subsidiary of EQUITY LIFESTYLE PROPERTIES, INC. Management, L.P. is the entity that manages the property where the subject incident took place." (Miller Decl., Exh. 3, at p. 4.)

Response to Special Interrogatory Nos. 5 and 6: "MHC TT L.P. is the entity that owns the property where the subject incident took place. MHC TT, L.P. is an indirect subsidiary EQUITY LIFESTYLE PROPERTIES, INC." (Miller Decl., Exh. 3, at p. 5.)

Response to Special Interrogatories Nos. 7 and 8: "Thousand Trails does not own or manage the property where the subject incident took place. Thousand Trails is a company which provides management services to state governments and is not related to the subject property." (Miller Decl., Exh. 3, at p. 5.)

Plaintiff argues that these responses are incomplete because "DESCRIBE IN DETAIL" and "RELATIONSHIP" are defined such that Equity Lifestyle must provide information concerning shared personnel, shared offices and resources, financial flows, formal or informal agreements between the entities, and payment of one entity's obligations by another. (Mot., at p. 7.)

In its Opposition, Equity Lifestyle asserts that it served supplemental responses on February 24, 2026 that name all of its officers and directors and describe in further detail the space and personnel overlap between the entities. (Opp'n, at p. 4.) Plaintiff argues that the responses remain evasive because they still do not provide any description of financial flows between the entities. (Reply, at pp. 2-3.) Specifically, the interrogatories define "RELATIONSHIP" to include the "financial transactions, loans, or transfers of funds or assets; … agreements, formal or informal, governing the relationship between the entities or PERSONS; and … instances in which the expenses, debts, or obligations of one entity were paid by another entity or PERSON." (Miller Decl., Exh. 1, at p. 3.) Equity Lifestyle contends that the response is complete and straightforward but admittedly does not include any information regarding the financial relationship of the entities, arguing that such information is not within the scope of permissible discovery. (Opp'n, at p. 5.)

As the responses do not fully address the inquiry of the foregoing interrogatories, the Court finds them to be incomplete. The Court next considers Equity Lifestyle's objections to the interrogatories.

(b)
Disclosure of Financial Information

Equity Lifestyle contends that the interrogatories are overbroad in their request for corporate financial information. (Opp'n, at p. 5.)

First, Equity Lifestyle cites Civil Code section 3295 to argue that Plaintiff's request for financial information is procedurally improper. Civil Code section 3295 permits the court, for good cause, to grant a protective order requiring that a plaintiff present a prima facie case of the defendant's liability for exemplary damages before obtaining discovery about that defendant's financial condition. (Civ. Code, §§ 3294, 3295.) The interrogatories at issue, however, do not seek information about Equity Lifestyle's financial condition. They seek information relevant to shared financial management of the entities to determine whether there is common governance. Section 3295 accordingly does not apply.

Equity Lifestyle also asserts that veil-piercing discovery is unjustified until Plaintiff first makes a factual showing supporting his alter-ego liability theories. (Opp'n, at p. 7.) However, the cases Equity Lifestyle cites regarding alter-ego liability do not support limiting discovery in this way. Hennessy's Tavern, Inc. v. American Air Filter Co. (1988) 204 Cal.App.3d 1351 (Hennessy's) addressed when alter-ego issues may be raised (in the pleadings, at trial, at a hearing to determine the true identity of the judgment debtor, or in a subsequent enforcement action) and when the alter-ego defendant must be served after first being added as a new defendant in an amended complaint. (Hennessy's, at pp. 1358-1360.) And Greenspan v. LADT, LLC (2010) 191 Cal.App.4th 486 held that it was error to deny a motion to add a party as a judgment debtor on an alter-ego theory on the ground that alter-ego liability was not raised in arbitration, reasoning that requiring plaintiffs to name a corporation and all its affiliated entities in the complaint would result in unnecessary investigation into such claims without regard to the circumstances. (Greenspan, at p. 517.) Neither case requires a plaintiff to present a prima facie case of alter-ego liability in order to obtain relevant discovery.

Even if a reasonable basis for the assertion of an alter-ego theory were required to seek discovery of information relating to asset commingling, the Court finds that the commonality of officers and directors among the Defendants, as shown in Defendants' supplemental responses, supplies that basis. (Medel Decl., Exhs. 2, 3.)

The Motion is accordingly GRANTED as to Special Interrogatory Nos. 3-8.

(2)
Special Interrogatories, Set One, Nos. 20-21

Interrogatory No. 20: "IDENTIFY YOUR current officers, including their names, titles, and dates of service." (Miller Decl., Exh. 3, at p. 10.)

Interrogatory No. 21: "IDENTIFY all of YOUR current directors." (Miller Decl., Exh. 3, at p. 10.)

Response to both: "Objection, the interrogatory is wholly overbroad, burdensome and seeks information not likely to lead to the discovery of admissible evidence. Further, the interrogatory seeks information wholly irrelevant to the subject matter. A party may obtain discovery regarding any matter not privileged, that is relevant to the subject matter involved in the pending action or the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonabl[y] calculated to lead to the discovery of admissible evidence. Emerson Electric Co. v. Superior Court (1997) 16 Cal.4th 1101, 1108. Although the scope of discovery is broad it is not without limits. Objection, the interrogatory seeks private information. California courts have held that the right to privacy is not absolute, but discovery that invades privacy must be justified by a compelling interest. Merely being a board member does not, by itself, make a person's identity or personal information discoverable. Article 1, Section 1 of the California Constitution. Responding Party is willing to meet and confer on this issue to determine the relevance of the requested private information to the subject matter." (Pl. SS, at pp. 10-11.)

Equity Lifestyle asserts that its supplemental responses, served on February 24, 2026 and July 15, 2026, supply the information sought, listing the names of all of its officers, directors, and partners. (Opp'n, at p. 5.) Plaintiff contends that the responses to these interrogatories are still incomplete because the dates of service for the individuals is not included. (Reply, at p. 3.)

Special Interrogatory No. 20 specifically requests dates of service for Equity Lifestyle's officers. The supplemental response supplies only their names and titles and is accordingly not a complete response to the inquiry. (Medel Decl., Exh. 2, at pp. 16-18.) Special Interrogatory No. 21 does not request dates of service. The Court accordingly finds the response to Special Interrogatory No. 20 to be incomplete.

The Court accordingly GRANTS the Motion as to Special Interrogatory No. 20. As to Special Interrogatory No. 21, the Motion is DENIED.

(3)
Special Interrogatories, Set One, No. 25

Special Interrogatory No. 25: "If YOU contend that YOU should not be a party to this lawsuit, DESCRIBE IN DETAIL all facts that support YOUR contention." (Miller Decl., Exh. 3, at p. 12.)

Response: "Equity Lifestyle, Properties Inc. ('ELP') is a self-administered REIT that does not own or operate the property where the subject incident took place. MHC Property Management, L.P. is the entity that manages the property where the subject incident took place. MHC Property Management, L.P. is indirect, wholly owned subsidiary of ELP. MHC TT L.P. is the entity that owns the property where the subject incident took place." (Miller Decl., Exh. 3, at p. 12.)

Equity Lifestyle contends that the foregoing response is a complete response indicating the facts supporting its contention that it does not belong in the action—specifically, that it neither owns nor manages the property where the incident occurred. (Opp'n, at p. 6.) Plaintiff asserts that the response is incomplete because lack of ownership is a conclusion rather than a fact, and the call to "DESCRIBE IN DETAIL" the facts supporting the contention requires that Equity Lifestyle state the facts upon which the claimed lack of ownership and control are based, including identifying persons with knowledge and identifying documents on which it relies. (Reply, at p. 3.)

The Court agrees that the mere conclusion that Equity Lifestyle does not own or manage the subject property does not supply a detailed factual basis for the assertion of lack of ownership or control, such as identification of witnesses with knowledge about Equity Lifestyle's real property assets, documentation regarding the actual owner of the property, or details about other indicia of ownership or control.

The Court accordingly finds the response to be incomplete. The Motion is therefore GRANTED as to Special Interrogatory No. 25.

C. Monetary Sanctions

"The court may impose a monetary sanction and order that one engaging in the misuse of the discovery process … pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct." (Code Civ. Proc. § 2023.030, subd. (a).) Misuse of the discovery process includes making an evasive response to discovery. (Id., § 2023.010, subd. (f).)

"The court shall impose a monetary sanction … against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2030.300, subd. (d).)

Plaintiff requests that the Court impose sanctions against MHC Property in the amount of $3,000.00, calculated as 6 hours' work in connection with preparing the Motion and supporting papers, preparing a reply, and appearing on the Motion. (Miller Decl., ¶ 21.)

Equity Lifestyle contends that the amount of sanctions sought is egregious given that Plaintiff has filed four identical motions regarding these same interrogatories, one directed to each Defendant. (Opp'n, at p. 8.) The Court notes that one of these motions has already been heard and agrees that the motions are substantially similar such that awarding the full amount requested would result in compensation disproportionate to the reasonable amount of work incurred. The Court finds Plaintiff's counsel's hourly rate of $500.00 to be reasonable and finds the total and reasonable attorney fees in connection with the Motion to be $1,000.00 (one hour reasonably spent on the moving and reply papers, and one hour for the appearance, at the rate of $500.00).

The request for sanctions is thus GRANTED IN PART.

CONCLUSION

Plaintiff's motion to compel Defendant Equity Lifestyle Properties, Inc.'s further responses to Plaintiff's Special Interrogatories, Set One is GRANTED IN PART. Defendant Equity Lifestyle Properties, Inc. is ordered to serve verified further responses to Plaintiff's Special Interrogatories, Set One, Nos. 3-8, 20, and 25 within 20 days.

Plaintiff's request for monetary sanctions is GRANTED IN PART. Defendant Equity Lifestyle Properties, Inc. is ordered to pay $1,000.00 to Plaintiff within 20 days.

Moving party to give notice.